

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

September 12, 2022

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers and via electronic conference meeting. Present were: MAYOR – Patrick Collins, COUNCIL MEMBERS – Dr. Michelle Aldrich, Bryan Cook, Ken Esquibel, Richard Johnson, Dr. Mark Rinne, Scott Roybal, Tom Segrave and Jeff White. Absent: Pete Laybourn. Also present: Kristina F. Jones, City Clerk. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda. Mr. Roybal moved to approve, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body present.

[CA] Minutes from Regular Meeting of the Governing Body on August 22, 2022. Motion (per Consent Agenda) carried.

ORDINANCE –3rd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from LI Light Industrial to CB Community Business for land located south of and adjacent to W Lincolnway. Reporting for Public Services Committee, Mr. Cook moved to approve on third and final reading, seconded by Mr. Roybal. Motion carried. Voting “yes” – all members of the governing body present. (#4457)

ORDINANCE –3rd READING – Pursuant to Section 2.2.2 Planned Development - Regulating Plan or Development Master Plan, Section 5.1.3 Official Zoning Map, and Section 5.6.2 PUD - Planned Unit Development District of the Unified Development Code, amending Ordinance No. 3841 by modifying certain standards of the Adopted District, Planned Unit Development (PUD), for Pointe Plaza, 6th Filing, Cheyenne, Laramie County, Wyoming (located to the northwest of the intersection of Gardenia Dr. and Powderhouse Rd.). Mr. Cook moved to approve on third and final reading, seconded by Mr. Segrave. Mr. Cook moved to amend by substitute dated September 6, 2022, seconded by Mr. Segrave. Motion to amend by substitute carried. Voting “yes” – all members of the governing body present. Main motion as amended by substitute carried. Voting “yes” – all members of the governing body present with the exception of Mr. Johnson voting “no”. Public comment was made by: Brad Emmons, AVI, Brenda Cowley and Eleanor Grinnell. Comments were made by the following members of the governing body: Mayor Collins, Mr. Cook and Mr. Segrave. (#4458)

ORDINANCE – 3rd READING – Amending and repealing portions of Chapter 2.20, Police Department, and repealing Chapter 2.24, Police Pension Board and Fund, of Title 2, Administration and Personnel, of the Municipal Code of the City of Cheyenne, Wyoming, to eliminate obsolete provisions. Mr. Cook moved to approve on third and final reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body present with the exception of Mr. Johnson voting “no”. Comments were made by the following members of the governing body: Mr. Johnson. (#4459)

ORDINANCE – 3rd READING – Amending Chapter 2.08, City Officers and Employees Generally, and amending and repealing portions of Chapter 2.28, Reserve Police Officers, of Title 2, Administration and Personnel, of the Municipal Code of the City of Cheyenne, Wyoming, to update and revise the administration of the Reserve Police Officers Program and to extend administration over part-time Police Officers. Mr. Cook moved to approve on third and final reading, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body present. (#4460)

ORDINANCE – 3rd READING – Amending Section 10.52.010, Method of Parking, of Title 10, Vehicles and Traffic, of the Municipal Code of the City of Cheyenne, Wyoming, to authorize back-in angle parking as specified. Mr. Cook moved to approve on third and final reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body present. (#4461)

ORDINANCE – 3rd READING – Amending Chapter 2.04, Mayor and City Council, within Title 2, Administration and Personnel, and Chapter 12.04, Streets, Sidewalks and Driveways Generally, within Title 12, Streets, Sidewalks and Public Places, of the Municipal Code of the City of Cheyenne, Wyoming, to amend provision governing contract approvals. Reporting for Finance Committee, Mr. White moved to approve on third and final reading, seconded by Dr. Aldrich. Motion carried. Voting “yes” – all members of the governing body present with the exception of Mr. Johnson voting “no”. Comments were made by the following members of the governing body: Mr. Johnson. (#4462)

ORDINANCE – 2nd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from HR High-Density Residential to CB Community Business for land located north of and adjacent to the intersection of Dell Range Boulevard and Moran Avenue. Mr. Cook moved to approve on second reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body present with the exception of Mr. Johnson and Dr. Rinne voting “no”. Public comment was made by: Michael White, Cushing Terrell, on behalf of Les Schwab Tires. Comments were made by the following members of the governing body: Mayor Collins and Mr. Cook.

ORDINANCE – 2nd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from MR Medium-Density Residential to NR-2 Neighborhood Residential – Medium Density for land located south of 12th Street, east of Logan Avenue. Mr. Cook moved to approve on second reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body present.

ORDINANCE –2nd READING – Amending Section 2.32.020, Department Personnel, of Chapter 2.32, Fire Department, of Title 2, Administration and Personnel, to amend provision governing the appointment of Fire Department Personnel. Mr. Cook moved to approve on second reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body present.

ORDINANCE –1st READING – Amending Section 10.12.160, Authority to Impound Illegally Parked Vehicles, and Section 10.12.170, Immobilization, of Title 10, Vehicles and Traffic, modifying time period for vehicle impoundment after immobilization – referred to Public Services Committee. (Sponsor – Mr. Segrave).

ORDINANCE –1st READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from MUB Mixed-Use Business Emphasis to CB Community Business for land north of Pershing Boulevard, east of College Drive – referred to Public Services Committee. (Sponsor – Mr. Cook)

ORDINANCE –1st READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from Swan Ranch PUD Planned Unit Development (Ordinance #3989) to CB Community Business for land located north of High Plains Road, west of I-25 – referred to Public Services Committee. (Sponsor – Mr. Cook)

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for Comea Subdivision, 2nd Filing, a replat of portions of Lots 6 thru 11, and Lots 12 thru 17, Block 404, Original City Plat, south of Lincoln Way, and north of the Union Pacific Railroad Right of Way, and Lot 1, Block 1, Comea Subdivision, being situated in a portion of the northeast ¼ of Section 1, Township 13 North, Range 67 West of the 6th P.M., City of Cheyenne, Laramie County, Wyoming (located south of and adjacent to W Lincolnway). Motion (per Consent Agenda) carried. (#6267)

RESOLUTION – Supporting the Cheyenne Regional Airport in the application for and acceptance of federal assistance from the Federal Aviation Administration under the Airport Improvement Program to assist in funding costs related to reconstruction of runway 9/27 at Cheyenne Regional Airport. Mr. White advised the item was heard under other items for the agenda at the September 6, 2022 Finance Committee, therefore, provisions of Title 2 of City Code had been met. Mr. White moved to adopt, seconded by Dr. Aldrich. Motion carried. Voting “yes” – all members of the governing body present. Public comment was made by: Tim Bradshaw, Director of Aviation, Cheyenne Regional Airport. Comments were made by the following members of the governing body: Mr. Johnson. (#6268)

[CA] RESOLUTION – Reappropriating the Fiscal Year 2023 Budget of the City of Cheyenne according to the provisions of W.S. §§ 16-4-112 & 16-4-113 – referred to Finance Committee. (Sponsor – Mr. White)

[CA] RESOLUTION – Expressing the support of the Governing Body to conduct a review of Downtown Parking Enforcement – referred to Public Services Committee. (Sponsors – Mr. Cook, Mr. Esquibel, Mr. Johnson, Dr. Rinne, Mr. Roybal & Mr. White)

[CA] RESOLUTION – Expressing the will of the Governing Body directing the Mayor to hire a Special Projects Manager to assist the City of Cheyenne in managing and coordinating certain 6th Penny Tax Projects and other City project priorities – referred to Finance Committee. (Sponsor – Mr. Segrave)

[CA] RESOLUTION – Expressing the will of the Governing Body to prioritize and adequately fund specified Downtown 6th Penny Tax Maintenance and Improvement Projects – referred to Finance Committee. (Sponsors – Dr. Aldrich, Mr. Laybourn, Mr. Roybal, Mr. Segrave & Mr. White)

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for Lake Minnehaha III, a replat of Lots 1 and 1½, Block 18, resubdivision of Lake Minnehaha, City of Cheyenne, Laramie County, Wyoming (located southwest of the intersection of 12th Street and Carbon Avenue) – referred to Public Services Committee. (Sponsor – Mr. Cook)

[CA] RESOLUTION – Extending the City approval of an exception to the ‘201 Agreement’ for the owner of the property located at 4120 and 4121 West 5th Street to allow the continuation of on-site septic systems located within the City and in unincorporated Laramie County – referred to Public Services Committee. (Sponsor – Mr. Cook)

[CA] RESOLUTION – Granting an exception to the ‘201 Agreement’ for the owner of the property located at 516 Pontillo Drive to allow to allow the creation of a new on-site septic system located within Laramie County – referred to Public Services Committee. (Sponsor – Mr. Cook)

[CA] Preliminary Plat for Harmony Valley, 3rd Filing, a replat of Lot 1, Block 1, Interior Heights 4th Filing; and Lot 1 & Lot 2, Block 10, Harmony Valley 1st Filing, City of Cheyenne, Laramie County, Wyoming (located between Allison Road and College Drive, west of Walterscheid Boulevard) – referred to Public Services Committee. (Sponsor – Mr. Cook)

[CA] Owner and Design-Builder Agreement between the City of Cheyenne and FCI Constructors of Wyoming, LLC for finishing the Cheyenne Public Safety Center (2012 1% Specific Purpose Option Tax Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$150,000.00). (#7590)

[CA] Agreement between the City of Cheyenne and StreamLink Software Inc. d/b/a AmpliFund for a multi-year contract for grant management software (General Fund & American Rescue Plan Federal Recovery funds). Motion (per Consent Agenda) carried (in an amount not to exceed \$67,500.00). (#7591)

[CA] Memorandum of Understanding between the City of Cheyenne, Transit Division, and Laramie County to provide public transportation services to Laramie County Community College and for an area of Laramie County immediately adjacent to the City (Revenue to the City). Motion (per Consent Agenda) carried. (#7592)

[CA] Grant agreement between the City of Cheyenne and the Federal Transit Administration to fund Transit operations (ARP 5307 Grant). Motion (per Consent Agenda) carried. (#7593)

Agreement between the City of Cheyenne, Community Recreation & Events, and the Officials for Fun Club to officiate the 2022-2023 youth and adult volleyball programs (Recreation Programs Fund). Mr. White advised there was no recommendation from the Finance Committee. Mr. White moved to approve, seconded by Mr. Roybal. Motion carried. Voting “yes” – all members of the governing body present with the exception of Mr. Esquibel and Mr. Johnson voting “no”. Public comment was made by: Debby Followell, Officials for Fun Club. Comments were made by the following members of the governing body: Mayor Collins, Dr. Aldrich, Mr. Esquibel and Mr. Johnson. (#7594)

[CA] Agreement between the City of Cheyenne, Office of Youth Alternatives, and Laramie County for juvenile probation services (Revenue to the City). Motion (per Consent Agenda) carried. (#7595)

[CA] Contract between the City of Cheyenne, Office of Youth Alternatives, and Laramie County for on-call crisis center services (Revenue to the City). Motion (per Consent Agenda) carried. (#7596)

[CA] Professional Services Agreement between the City of Cheyenne, Cheyenne Fire & Rescue Department, and TimeClockPlus (TCP), of San Angelo, Texas, for scheduling software (General Fund) – referred to Finance Committee.

[CA] Contract between the City of Cheyenne, Cheyenne Police Department, and the Wyoming Department of Transportation for Impaired Driving High Visibility Overtime Enforcement (Highway Safety Grant) – referred to Finance Committee.

[CA] Contract between the City of Cheyenne, Cheyenne Police Department, and the Wyoming Department of Transportation for Occupant Protection High Visibility Overtime Enforcement (Highway Safety Grant) – referred to Finance Committee.

[CA] Contract between the City of Cheyenne and the Cheyenne Housing Authority to provide supportive senior services (General Fund) – referred to Finance Committee.

[CA] Contract between the City of Cheyenne and Volunteers of American Northern Rockies, Alcohol Receiving Center, to provide alcohol and drug detoxication services (General Fund) – referred to Finance Committee.

[CA] Contract between the City of Cheyenne and Safe Harbor to provide a safe and secure environment to families who have been affected by abuse (General Fund) – referred to Finance Committee.

[CA] Access License Agreement between the City of Cheyenne and Retail Properties C, LLC for ingress and egress access purposes (General Fund) – referred to Finance Committee.

[CA] Contract Modification #1 to Contract #7545 between the City of Cheyenne and OpenGov Inc., for Software as a Service (SaaS) Solution for budgeting, financial management, procurement, citizen services, reporting, transparency, and asset management (American Rescue Plan Federal Recovery funds). Motion (per Consent Agenda) carried (in an amount not to exceed \$85,131.00). (#7545)

Contract Modification #1 to Contract #7157 between the City of Cheyenne and United Way of Laramie County to provide services to various community programs to allocate remaining portion of 10% “Excess Monies” to Human Services pursuant to Resolution #5607 (2015-2018 Optional 1% Sales Tax Fund). Mr. White moved to approve in an amount not to exceed \$98,762.00, seconded by Dr. Aldrich. Motion carried. Voting “yes” – all members of the governing body present with the exception of Mr. Esquibel and Mr. Johnson voting “no”. (#7157)

Contract Modification #1 to Contract #7434 between the City of Cheyenne and United Way of Laramie County to provide services to various community programs to allocate funds pursuant to Resolution #5933 (2019-2022 Optional 1% Sales Tax Fund). Mr. White advised there was no recommendation from the Finance Committee. Mr. White moved to approve in an amount not to exceed \$250,000.00, seconded by Mr. Cook. Motion carried. Voting “yes” – all members of the governing body present with the exception of Mr. Johnson voting “no”. Public comment was made by: Vernon Dobelmann, Executive Director of United Way. Comments were made by the following members of the governing body: Mayor Collins, Dr. Aldrich, Cook, Mr. Esquibel and Mr. Johnson. (#7434)

Contract Modification #2 to Contract #7199 between the Wyoming Department of Family Services and the City of Cheyenne, Office of Youth Alternatives, for kinship advocacy services for displaced, at-risk youth extending the contract term to September 20, 2023. Mr. White advised the item was heard under items for the agenda at the September 6, 2022 Finance Committee meeting, therefore, provisions of Title 2 of City Code had been met. Mr. White moved to approve, seconded by Dr. Aldrich. Motion carried. Voting “yes” – all members of the governing body present. Comments were made by the following members of the governing body: Mr. Cook. (#7199)

[CA] Amendment #2 to Contract #5939 between the City of Cheyenne and The Lamar Companies for billboard leases (Revenue to the City) – referred to Finance Committee.

[CA] Contract Modification #1 to Contract #7488 between the City of Cheyenne and MHP, LLP to provide financial and compliance auditing services for the City of Cheyenne and the Cheyenne Board of Public Utilities for fiscal year ending June 30, 2022 (American Rescue Plan Funds) – referred to Finance Committee.

[CA] Contract Modification #1 to Contract #7504 between the City of Cheyenne and FCI Constructors of Wyoming LLC for the Emergency Response Facilities Guaranteed Maximum Price (GMP) (2021 Specific Purpose Option Tax Fund and 2017 Specific Purpose Option Tax Fund Overages) – referred to Finance Committee.

[CA] Consideration to purchase between the City of Cheyenne and Econolite, for four (4) traffic controller cabinets for the City of Cheyenne Traffic Division (2019-2022 Optional 1% Sales Tax Fund) – referred to Finance Committee.

Appointments of Annalycia Aguirres, William Barrington, Julianne Beech, Ty Bronder, Katelyn Cobb, Kaedyn Patrick Austin Davenport, Nora Fraley, Caitlyn Ganskow, Heidi Glaze, Nevaeh Green, Kristen Huffman, Madalyn Huffman, Andrew Lance, Molly Madsen and Elizabeth Stump to the 2022-2023 Mayor’s Youth Council. Mr. Segrave moved to approve, seconded by Mr. Roybal. Motion carried. Voting “yes” – all members of the governing body present with the exception of Mayor Collins who did not vote (mayoral appointments). Comments were made by the following members of the governing body: Mayor Collins.

No comments were made on the Voucher Report as presented.

Announcement was made that a Calcutta, benefitting the Wyoming Breast Cancer Initiative, will be held Friday, September 30 – Sunday, October 2, 2022, beginning at 5:00 p.m. each night at Peppermill Bar, 1618 Stillwater Ave., Cheyenne, Wyoming.

Public comment was made by Jim Ridgeway under other business.

The following members of the governing body made comments under other business – Dr. Aldrich, Mr. Johnson and Mr. White.

There being no further business to come before the governing body, the meeting was officially adjourned at 7:13 p.m.

Submitted by,

Kristina F. Jones,
City Clerk

This notice is available in alternative, accessible formats upon request.

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